

25TRCV03695 25TRCV03695

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV03695 Hearing Date: September 15, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – September 15, 2026

Calendar No.

PROCEEDINGS

Hope

Ricks v. Inglewood Unified School District, et al.

25TRCV03695

1.

Hope Ricks'

Motion for Reconsideration

TENTATIVE RULING

Hope Ricks' Motion for Reconsideration is denied.

Background

Plaintiff filed the Complaint on October 28, 2025 and

the First Amended Complaint on February 2, 2026. Plaintiff alleges the following facts. Plaintiff was unlawfully terminated from a tenured employment without Defendant following and providing the proper statutory procedures. Plaintiff alleges the following causes of action: 1. Violation of Cal. Ed. Code §§ 44949–44955; 2. Violation of Procedural Due Process (Cal. Const Art. I, §7); 3. Declaratory Relief – Unlawful Departure from Statutory and Policy-Based Employment Practices.

On May 28, 2026, Inglewood Unified School District's Demurrer to First Amended Complaint was sustained without leave to amend. On June 8, 2026, Plaintiff filed this motion for reconsideration of the Court's ruling sustaining the demurrer without leave to amend. On July 27, 2026, the Court entered judgment in this action.

Request for Judicial Notice

Defendant's request for judicial notice is granted pursuant to Evidence Code 452(b).

Motion for
Reconsideration

CCP § 1008(a) states: "When an application for an order has been made to a or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." In addition, the party seeking reconsideration must provide not just new or different facts, circumstance, or law, but a satisfactory explanation for the failure to produce it at an earlier time. See *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.

Plaintiff moves for reconsideration, pursuant to CCP § 1008(a), of the Court's ruling of May 28, 2026 sustaining the demurrer to the First Amended Complaint without leave to amend. Defendant "requests that the

Court reconsider only the portion of its ruling denying leave to amend and modify the ruling to sustain the demurrer with leave to amend. order entered on December 11, 2025. [...] [R]econsideration is warranted because the Court's ruling clarified that the perceived defect is the procedural vehicle used to present Plaintiff's claims. The ruling did not find that Plaintiff could never allege a viable theory of relief; instead, the Court concluded that Plaintiff's claims should have been pursued through writ review. That defect is curable." (Notice of Motion, p. 2, lines 5-15).

The motion for reconsideration must be denied. The Court no longer has jurisdiction to grant this motion as judgment has been entered in this action. "[A]fter entry of judgment, a trial court has no further power to rule on a motion for reconsideration. [...] A final judgment terminates the litigation between the parties and leaves nothing in the nature of judicial action to be done other than questions of enforcement or compliance. Until entry of judgment, the court retains complete power to change its decision ...; it may change its conclusions of law or findings of fact. [Citation.] After judgment a trial court cannot correct judicial error except in accordance with statutory proceedings. [Citations.] A motion for reconsideration is not such a motion." APRI Ins. Co. v. Superior Court (1999) 76 Cal.App.4th 176, 181–182 (internal citations and quotations omitted).

In addition, the Court notes that Plaintiff failed to submit any new or different facts, circumstances, or law. In fact, Plaintiff admits that she has already previously argued that she should be allowed leave to amend. "At the hearing, I appeared on behalf of Plaintiff and opposed the tentative ruling. I also requested that, if the Court was inclined to sustain the demurrer, Plaintiff be granted leave to amend to plead mandate-based relief under Code of Civil Procedure section 1094.5 and/or section 1085." (Decl., Abdallah Ali, ¶ 8). Further, to the extent that any new arguments were made in the motion that were not presented at the prior hearing, Plaintiff failed to provide a satisfactory explanation as to why they were not presented earlier.

Plaintiff's motion for reconsideration is denied.

Defendant is ordered to give notice of this ruling.